



## CHAPTER 19.

An Act to exclude from retention under section five of the Coal Act, 1938, interests arising under certain concurrent leases, and for purposes connected therewith.

[11th June 1942.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purposes of the Coal Act, 1938, and the Coal (Registration of Ownership) Act, 1937, in their application to England, wherever at the valuation date the terms of years under two leases were subsisting concurrently in any premises, the term under one of them (in this section referred to as the "superior lease") being held in reversion expectant on the term under the other (in this section referred to as the "inferior lease"), the inferior lease shall be treated as regards those premises as derived out of the superior lease and as being an under-lease, and those premises shall be treated as sub-demised by the inferior lease, as well where the term under the superior lease began later than, or at the same time as, the term under the inferior lease as where it began earlier.

Exclusion  
from retention  
of interests  
arising under  
certain con-  
current leases.

1 & 2 Geo. 6.  
c. 52.  
1 Edw. 8. and  
1 Geo. 6. c. 56.

2.—(1) This Act may be cited as the Coal (Concurrent Leases) Act, 1942. Short title.

(2) This Act shall be construed as one with Part I of the Coal Act, 1938, and this Act and that Act may be cited together as the Coal Acts, 1938 and 1942.

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